



DECISION

Complaint No. : POS/230/HYD/2025

Name and address of the complainant : Mrs. Khairunisa w/o Muhammad Ismail,
R/o H. No. G-2739, Sunar Gali Phulleli,
Hyderabad.

Name of the Agency Complained against : Town Municipal Corporation, Preetabad, Hyderabad.

Name & Designation of Investigating Officer : Syed Muhammad Sajjad Hyder, Regional Director,
Regional Office, Hyderabad.

Vetted by : **Muhammad Naseer Jamali, Advisor-N**

Subject : COMPLAINT REGARDING NON-REMOVAL OF ILLEGALLY INSTALLED CABIN FROM THE STREET WHERE THE COMPLAINANT RESIDES

Complaint

Mrs. Khairunisa filed a complaint dated 13.03.2025 wherein she stated that an encroacher, named Asif Ali has illegally encroached upon 5 to 7 feet of the street by installing a cabin in front of her house. She approached the authorities for removal of encroachment and the same was removed repeatedly but it is installed again. Aggrieved by that she solicited intervention this Institution.

Proceedings

2. The complaint was admitted for investigation u/s 10 (3) of the Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended up to date) subject to submission of mandatory documents and by condoning the delay.
3. This office issued a notice vide letter dated 30.04.2025 to the Town Municipal Commissioner, TMC, Preetabad Hyderabad for report, who in response informed vide letter dated 29.07.2025 that the Anti-Encroachment cell has removed the illegal stall from the street and the matter has been resolved.
4. The daughter of the complainant appeared before Investigating Officer Hyderabad on 06.08.2025 when she confirmed the version of the agency but said that it has been encroached again by the same person.

Findings

5. The Investigation of the complaint established that Mr. Asif Ali is a habitual encroacher and grievance of the complainant has not been redressed.

Decision

6. In view of the above and in exercise of powers vested in me under section 11 of Establishment of the office of Ombudsman for the Province of Sindh Act, 1991 (amended upto date). I, hereby direct the Municipal Commissioner, Hyderabad Municipal Corporation, Hyderabad to initiate legal proceedings against Mr. Asif Ali Cheppa by registering a formal complaint under relevant law before the competent court of law for committing the unlawful act of encroachment and keep vigilant eye on the miscreants and take necessary action in accordance with the law to defeat the encroachers and safeguard the public property and restore the street in it's original shape under intimation to this office within 30 days.

Given under my hand and seal of the office



Sd /-
(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman Sindh

Karachi dated 30th October, 2025